

GINSBURG, J., dissenting

man-standing for which we sometimes depart from *stare decisis*.” *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 458 (2015). In adopting and cleaving to the doctrine, the Court stressed that originally, the Clause restrained only federal, not state, action. *E. g.*, *Bartkus*, 359 U. S., at 127; *Lanza*, 260 U. S., at 382; cf. *Abbate*, 359 U. S., at 190.

Before incorporation, the separate-sovereigns doctrine had a certain logic: Without a carve-out for successive prosecutions by separate sovereigns, the Double Jeopardy Clause would have barred the Federal Government from prosecuting a defendant previously tried by a State, but would not have prevented a State from prosecuting a defendant previously tried by the Federal Government. Incorporation changed this. Operative against the States since 1969, when the Court decided *Benton v. Maryland*, 395 U. S. 784, the double jeopardy proscription now applies to the Federal Government and the States alike. The remaining office of the separate-sovereigns doctrine, then, is to enable federal and state prosecutors, proceeding one after the other, to expose defendants to double jeopardy.

The separate-sovereigns doctrine’s persistence contrasts with the fate of analogous dual-sovereignty doctrines following application of the rights at issue to the States. Prior to incorporation of the Fourth Amendment as a restraint on state action, federal prosecutors were free to use evidence obtained illegally by state or local officers, then served up to federal officers on a “silver platter.” See *Elkins v. United States*, 364 U. S. 206, 208–214 (1960); *Weeks v. United States*, 232 U. S. 383, 398 (1914). Once the Fourth Amendment applied to the States, abandonment of this “silver platter doctrine” was impelled by “principles of logic” and the reality that, from the perspective of the victim of an unreasonable search and seizure, it mattered not at all “whether his constitutional right ha[d] been invaded by a federal agent or by a state officer.” *Elkins*, 364 U. S., at 208, 215. As observed by Justice Harlan, *Elkins*’ abandonment of a separate-